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context of summary affirmances, “‘unexplicated’” decisions may “‘sett[le] the issues for the parties, [but they are] not to be read as a renunciation by this Court of doctrines previously announced in our opinions.’”⁵⁵ Much the same may be said here. *Apodaca*’s judgment line resolved that case for the parties in that case. It is binding in that sense. But stripped from any reasoning, its judgment alone cannot be read to repudiate this Court’s repeated pre-existing teachings on the Sixth and Fourteenth Amendments.⁵⁶

B

1

There’s another obstacle the dissent must overcome. Even if we accepted the premise that *Apodaca* established a precedent, no one on the Court today is prepared to say it was rightly decided, and *stare decisis* isn’t supposed to be the art of methodically ignoring what everyone knows to be true.⁵⁷ Of course, the precedents of this Court warrant our deep respect as embodying the considered views of those who have come before. But *stare decisis* has never been treated as “an inexorable command.”⁵⁸ And the doctrine is “at its weakest when we interpret the Constitution”⁵⁹ be-

⁵⁵ *Mandel v. Bradley*, 432 U.S. 173, 176 (1977) (*per curiam*) (quoting *Fusari v. Steinberg*, 419 U.S. 379, 392 (1975) (Burger, C. J., concurring); see also *Bush v. Vera*, 517 U.S. 952, 1001–1002 (1996) (THOMAS, J., concurring in judgment).

⁵⁶ The dissent floats a different theory when it suggests this Court’s denials of certiorari in cases seeking to clarify *Apodaca* is evidence of *Apodaca*’s precedential force. *Post*, at 145–146. But “[t]he significance of a denial of a petition for certiorari ought no longer . . . require discussion. This Court has said again and again and again that such a denial has no legal significance whatever bearing on the merits of the claim.” *Darr v. Burford*, 339 U.S. 200, 226 (1950) (Frankfurter, J., dissenting).

⁵⁷ R. Cross & J. Harris, *Precedent in English Law* 1 (4th ed. 1991) (attributing this aphorism to Jeremy Bentham).

⁵⁸ *Pearson v. Callahan*, 555 U.S. 223, 233 (2009) (internal quotation marks omitted).

⁵⁹ *Agostini v. Felton*, 521 U.S. 203, 235 (1997).

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cause a mistaken judicial interpretation of that supreme law is often “practically impossible” to correct through other means.⁶⁰ To balance these considerations, when it revisits a precedent this Court has traditionally considered “the quality of the decision’s reasoning; its consistency with related decisions; legal developments since the decision; and reliance on the decision.”⁶¹ In this case, each factor points in the same direction.

Start with the quality of the reasoning. Whether we look to the plurality opinion or Justice Powell’s separate concurrence, *Apodaca* was gravely mistaken; again, no Member of the Court today defends either as rightly decided. Without repeating what we’ve already explained in detail, it’s just an implacable fact that the plurality spent almost no time grappling with the historical meaning of the Sixth Amendment’s jury trial right, this Court’s long-repeated statements that it demands unanimity, or the racist origins of Louisiana’s and Oregon’s laws. Instead, the plurality subjected the Constitution’s jury trial right to an incomplete functionalist analysis of its own creation for which it spared one paragraph. And, of course, five Justices expressly rejected the plurality’s conclusion that the Sixth Amendment does not require unanimity. Meanwhile, Justice Powell refused to follow this Court’s incorporation precedents. Nine Justices (including Justice Powell) recognized this for what it was; eight called it an error.

Looking to *Apodaca*’s consistency with related decisions and recent legal developments compounds the reasons for concern. *Apodaca* sits uneasily with 120 years of preceding case law. Given how unmoored it was from the start, it might seem unlikely that later developments could have done more to undermine the decision. Yet they have. While

⁶⁰ *Payne v. Tennessee*, 501 U.S. 808, 828 (1991) (internal quotation marks omitted).

⁶¹ *Franchise Tax Bd. of Cal. v. Hyatt*, 587 U.S. 230, 248 (2019).

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Justice Powell’s dual-track theory of incorporation was already foreclosed in 1972, some at that time still argued that it might have a role to play outside the realm of criminal procedure. Since then, the Court has held otherwise.⁶² Until recently, dual-track incorporation attracted at least a measure of support in dissent. But this Court has now roundly rejected it.⁶³ Nor has the plurality’s rejection of the Sixth Amendment’s historical unanimity requirement aged more gracefully. As we’ve seen, in the years since *Apodaca*, this Court has spoken inconsistently about its meaning—but nonetheless referred to the traditional unanimity requirement on at least eight occasions.⁶⁴ In light of all this, calling *Apodaca* an outlier would be perhaps too suggestive of the possibility of company.

When it comes to reliance interests, it’s notable that neither Louisiana nor Oregon claims anything like the prospective economic, regulatory, or social disruption litigants seeking to preserve precedent usually invoke. No one, it seems, has signed a contract, entered a marriage, purchased a home, or opened a business based on the expectation that, should a crime occur, at least the accused may be sent away by a 10-to-2 verdict.⁶⁵ Nor does anyone suggest that nonunanimous verdicts have “become part of our national culture.”⁶⁶ It would be quite surprising if they had, given that nonunani-

⁶² *McDonald*, 561 U. S., at 765–766.

⁶³ *Timbs*, 586 U. S., at 150. Contrary to the dissent’s suggestion, this Court’s longstanding rejection of dual-track incorporation does not necessarily imply that the Fourteenth Amendment renders the entire Bill of Rights applicable to the States. See *post*, at 156–157. The scope of an incorporated right and whether a right is incorporated at all are two different questions. See *Timbs*, 586 U. S., at 150 (“[I]f a Bill of Rights protection is incorporated, there is no daylight between the federal and state conduct it prohibits or requires”).

⁶⁴ See n. 35, *supra*.

⁶⁵ Cf. *Leegin Creative Leather Products, Inc. v. PSKS, Inc.*, 551 U. S. 877, 925–926 (2007) (BREYER, J., dissenting).

⁶⁶ *Dickerson v. United States*, 530 U. S. 428, 443 (2000).

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mous verdicts are insufficient to convict in 48 States and federal court.

Instead, the only reliance interests that might be asserted here fall into two categories. The first concerns the fact Louisiana and Oregon may need to retry defendants convicted of felonies by nonunanimous verdicts whose cases are still pending on direct appeal. The dissent claims that this fact supplies the winning argument for retaining *Apodaca* because it has generated “enormous reliance interests” and overturning the case would provoke a “crushing” “tsunami” of follow-on litigation.⁶⁷

The overstatement may be forgiven as intended for dramatic effect, but prior convictions in only two States are potentially affected by our judgment. Those States credibly claim that the number of nonunanimous felony convictions still on direct appeal are somewhere in the hundreds,⁶⁸ and retrying or plea bargaining these cases will surely impose a cost. But new rules of criminal procedures usually do, often affecting significant numbers of pending cases across the whole country. For example, after *United States v. Booker* held that the Federal Sentencing Guidelines must be advisory rather than mandatory, this Court vacated and remanded nearly 800 decisions to the courts of appeals. Similar consequences likely followed when *Crawford v. Washington* overturned prior interpretations of the Confrontation Clause⁶⁹ or *Arizona v. Gant* changed the law for searches incident to arrests.⁷⁰ Our decision here promises to cause less, and certainly nothing before us supports the dissent’s

⁶⁷ *Post*, at 140, 158.

⁶⁸ Brief for State of Oregon as *Amicus Curiae* 13 (“In 2018 alone . . . there were 673 felony jury trials in Oregon, and studies suggest that as many as two-thirds of those cases would have had a non-unanimous verdict”). At most, Oregon says the number of cases remaining on direct appeal and affected by today’s decision “easily may eclipse a thousand.” *Id.*, at 12.

⁶⁹ 541 U. S. 36, 60–63 (2004).

⁷⁰ 556 U. S. 332, 345–347 (2009).

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surmise that it will cause wildly more, disruption than these other decisions.

2

The second and related reliance interest the dissent seizes upon involves the interest Louisiana and Oregon have in the security of their final criminal judgments. In light of our decision today, the dissent worries that defendants whose appeals are already complete might seek to challenge their nonunanimous convictions through collateral (*i. e.*, habeas) review.

But again the worries outstrip the facts. Under *Teague v. Lane*, newly recognized rules of criminal procedure do not normally apply in collateral review.⁷¹ True, *Teague* left open the possibility of an exception for “watershed rules” “implicat[ing] the fundamental fairness [and accuracy] of the trial.”⁷² But, as this language suggests, *Teague*’s test is a demanding one, so much so that this Court has yet to announce a new rule of criminal procedure capable of meeting it.⁷³ And the test is demanding by design, expressly calibrated to address the reliance interests States have in the finality of their criminal judgments.⁷⁴

Nor is the *Teague* question even before us. Whether the right to jury unanimity applies to cases on collateral review is a question for a future case where the parties will have a chance to brief the issue and we will benefit from their adversarial presentation. That litigation is sure to come, and will rightly take into account the States’ interest in the finality of their criminal convictions. In this way, *Teague* frees us to say what we know to be true about the rights of the accused under our Constitution today, while leaving questions about the reliance interest States possess in their final judgments for later proceedings crafted to account for

⁷¹ 489 U. S. 288, 311–312 (1989) (plurality opinion).

⁷² *Ibid.*

⁷³ See *Whorton v. Bockting*, 549 U. S. 406, 417–418 (2007).

⁷⁴ See *Stringer v. Black*, 503 U. S. 222, 227–228 (1992).

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them. It would hardly make sense to ignore that two-step process and count the State's reliance interests in final judgments both here and again there. Certainly the dissent cites no authority for such double counting.

Instead, the dissent suggests that the feeble reliance interests it identifies should get a boost because the right to a unanimous jury trial has "little practical importance going forward."⁷⁵ In the dissent's telling, Louisiana has "abolished" nonunanimous verdicts and Oregon "seemed on the verge of doing the same until the Court intervened."⁷⁶ But, as the dissent itself concedes, a ruling for Louisiana would invite other States to relax their own unanimity requirements.⁷⁷ In fact, 14 jurisdictions have already told us that they would value the right to "experiment" with nonunanimous juries.⁷⁸ Besides, Louisiana's law bears only prospective effect, so the State continues to allow nonunanimous verdicts for crimes committed before 2019.⁷⁹ And while the dissent speculates that our grant of certiorari contributed to the failure of legal reform efforts in Oregon, its citation does not support its surmise. No doubt, too, those who risk being subjected to nonunanimous juries in Louisiana and Oregon today, and elsewhere tomorrow, would dispute the dissent's suggestion that their Sixth Amendment rights are of "little practical importance."

That point suggests another. In its valiant search for reliance interests, the dissent somehow misses maybe the most important one: the reliance interests of the American people. Taken at its word, the dissent would have us discard a Sixth Amendment right in perpetuity rather than ask two States to retry a slice of their prior criminal cases. Whether that slice turns out to be large or small, it cannot outweigh the

⁷⁵ *Post*, at 141.

⁷⁶ *Ibid.*

⁷⁷ *Post*, at 142.

⁷⁸ Brief for State of Utah et al. as *Amici Curiae* 1.

⁷⁹ See 2018 La. Reg. Sess., Act 722.

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interest we all share in the preservation of our constitutionally promised liberties. Indeed, the dissent can cite no case in which the one-time need to retry defendants has *ever* been sufficient to inter a constitutional right forever.

In the final accounting, the dissent's *stare decisis* arguments round to zero. We have an admittedly mistaken decision, on a constitutional issue, an outlier on the day it was decided, one that's become lonelier with time. In arguing otherwise, the dissent must elide the reliance the American people place in their constitutionally protected liberties, overplay the competing interests of two States, count some of those interests twice, and make no small amount of new precedent all its own.

V

On what ground would anyone have us leave Mr. Ramos in prison for the rest of his life? Not a single Member of this Court is prepared to say Louisiana secured his conviction constitutionally under the Sixth Amendment. No one before us suggests that the error was harmless. Louisiana does not claim precedent commands an affirmance. In the end, the best anyone can seem to muster against Mr. Ramos is that, if we dared to admit in his case what we all know to be true about the Sixth Amendment, we might have to say the same in some others. But where is the justice in that? Every judge must learn to live with the fact he or she will make some mistakes; it comes with the territory. But it is something else entirely to perpetuate something we all know to be wrong only because we fear the consequences of being right. The judgment of the Court of Appeals is

Reversed.

JUSTICE SOTOMAYOR, concurring as to all but Part IV–A.

I agree with most of the Court's rationale, and so I join all but Part IV–A of its opinion. I write separately, however, to underscore three points. First, overruling precedent

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here is not only warranted, but compelled. Second, the interests at stake point far more clearly to that outcome than those in other recent cases. And finally, the racially biased origins of the Louisiana and Oregon laws uniquely matter here.

I

Both the majority and the dissent rightly emphasize that *stare decisis* “has been a fundamental part of our jurisprudence since the founding.” *Post*, at 150 (opinion of ALITO, J.); see *ante*, at 105. Indeed, “[w]e generally adhere to our prior decisions, even if we question their soundness, because doing so ‘promotes the evenhanded, predictable, and consistent development of legal principles, fosters reliance on judicial decisions, and contributes to the actual and perceived integrity of the judicial process.’” *Alleynes v. United States*, 570 U. S. 99, 118 (2013) (SOTOMAYOR, J., concurring) (quoting *Payne v. Tennessee*, 501 U. S. 808, 827 (1991)).

But put simply, this is not a case where we cast aside precedent “simply because a majority of this Court now disagrees with” it. *Alleynes*, 570 U. S., at 133 (ALITO, J., dissenting). Rather, *Apodaca v. Oregon*, 406 U. S. 404 (1972), was on shaky ground from the start. That was not because of the functionalist analysis of that Court’s plurality: Reasonable minds have disagreed over time—and continue to disagree—about the best mode of constitutional interpretation. That the plurality in *Apodaca* used different interpretive tools from the majority here is not a reason on its own to discard precedent.

What matters instead is that, as the majority rightly stresses, *Apodaca* is a universe of one—an opinion uniquely irreconcilable with not just one, but two, strands of constitutional precedent well established both before and after the decision. The Court has long recognized that the Sixth Amendment requires unanimity. *Ante*, at 96, 106–108. Five Justices in *Apodaca* itself disagreed with that plurality’s contrary view of the Sixth Amendment. Justice Powell’s the-

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ory of dual-track incorporation also fared no better: He recognized that his argument on that score came “late in the day.” *Johnson v. Louisiana*, 406 U. S. 356, 375 (1972) (concurring opinion).

Moreover, “[t]he force of *stare decisis* is at its nadir in cases concerning [criminal] procedur[e] rules that implicate fundamental constitutional protections.” *Alleyne*, 570 U. S., at 116, n. 5. And the constitutional protection here ranks among the most essential: the right to put the State to its burden, in a jury trial that comports with the Sixth Amendment, before facing criminal punishment. See *Codispoti v. Pennsylvania*, 418 U. S. 506, 515–516 (1974) (“The Sixth Amendment represents a deep commitment of the Nation to the right of jury trial in serious criminal cases as a defense against arbitrary law enforcement” (internal quotation marks omitted)). Where the State’s power to imprison those like Ramos rests on an erroneous interpretation of the jury-trial right, the Court should not hesitate to reconsider its precedents.

II

In contrast to the criminal-procedure context, “[c]onsiderations in favor of *stare decisis* are at their acme in cases involving property and contract rights.” *Payne*, 501 U. S., at 828. Despite that fact, the Court has recently overruled precedent where the Court’s shift threatened vast regulatory and economic consequences. *Janus v. State, County, and Municipal Employees*, 585 U. S. 878 (2018); *id.*, at 952 (KAGAN, J., dissenting) (noting that the Court’s opinion called into question “thousands of . . . contracts covering millions of workers”); see *South Dakota v. Wayfair, Inc.*, 585 U. S. 162, 186 (2018) (noting the “legitimate” burdens that the Court’s overruling of precedent would place on vendors who had started businesses in reliance on a previous decision).

This case, by contrast, threatens no broad upheaval of private economic rights. Particularly when compared to the interests of private parties who have structured their affairs

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in reliance on our decisions, the States' interests here in avoiding a modest number of retrials—emphasized at such length by the dissent—are much less weighty. They are certainly not new: Opinions that force changes in a State's criminal procedure typically impose such costs. And were this Court to take the dissent's approach—defending criminal-procedure opinions as wrong as *Apodaca* simply to avoid burdening criminal justice systems—it would never correct its criminal jurisprudence at all.

To pick up on the majority's point, *ante*, at 108, in that alternate universe, a trial judge alone could still decide the critical facts necessary to sentence a defendant to death. *Walton v. Arizona*, 497 U. S. 639 (1990), overruled by *Ring v. Arizona*, 536 U. S. 584 (2002). An officer would still be able to search a car upon the arrest of any one of its recent occupants. *New York v. Belton*, 453 U. S. 454 (1981), holding limited by *Arizona v. Gant*, 556 U. S. 332 (2009). And States could still deprive a defendant of the right to confront her accuser so long as the incriminating statement was “reliable.” *Ohio v. Roberts*, 448 U. S. 56 (1980), abrogated by *Crawford v. Washington*, 541 U. S. 36 (2004). The Constitution demands more than the continued use of flawed criminal procedures—all because the Court fears the consequences of changing course.

III

Finally, the majority vividly describes the legacy of racism that generated Louisiana's and Oregon's laws. *Ante*, at 87–88, 99–100, and n. 44. Although Ramos does not bring an equal protection challenge, the history is worthy of this Court's attention. That is not simply because that legacy existed in the first place—unfortunately, many laws and policies in this country have had some history of racial animus—but also because the States' legislatures never truly grappled with the laws' sordid history in reenacting them. See generally *United States v. Fordice*, 505 U. S. 717, 729 (1992) (policies that are “traceable” to a State's *de jure* racial segregation

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and that still “have discriminatory effects” offend the Equal Protection Clause).

Where a law otherwise is untethered to racial bias—and perhaps also where a legislature actually confronts a law’s tawdry past in reenacting it—the new law may well be free of discriminatory taint. That cannot be said of the laws at issue here. While the dissent points to the “legitimate” reasons for Louisiana’s reenactment, *post*, at 142, Louisiana’s perhaps only effort to contend with the law’s discriminatory purpose and effects came recently, when the law was repealed altogether.

Today, Louisiana’s and Oregon’s laws are fully—and rightly—relegated to the dustbin of history. And so, too, is *Apodaca*. While overruling precedent must be rare, this Court should not shy away from correcting its errors where the right to avoid imprisonment pursuant to unconstitutional procedures hangs in the balance.

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In *Apodaca v. Oregon*, this Court held that state juries need not be unanimous in order to convict a criminal defendant. 406 U. S. 404 (1972). Two States, Louisiana and Oregon, have continued to use non-unanimous juries in criminal cases. Today, the Court overrules *Apodaca* and holds that state juries must be unanimous in order to convict a criminal defendant.

I agree with the Court that the time has come to overrule *Apodaca*. I therefore join the introduction and Parts I, II–A, III, and IV–B–1 of the Court’s persuasive and important opinion. I write separately to explain my view of how *stare decisis* applies to this case.

I

The legal doctrine of *stare decisis* derives from the Latin maxim “*stare decisis et non quieta movere*,” which means to stand by the thing decided and not disturb the calm. The doctrine reflects respect for the accumulated wisdom of

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judges who have previously tried to solve the same problem. In 1765, Blackstone—“the preeminent authority on English law for the founding generation,” *Alden v. Maine*, 527 U. S. 706, 715 (1999)—wrote that “it is an established rule to abide by former precedents,” to “keep the scale of justice even and steady, and not liable to waver with every new judge’s opinion.” 1 W. Blackstone, *Commentaries on the Laws of England* 69 (1765). The Framers of our Constitution understood that the doctrine of *stare decisis* is part of the “judicial Power” and rooted in Article III of the Constitution. Writing in Federalist 78, Alexander Hamilton emphasized the importance of *stare decisis*: To “avoid an arbitrary discretion in the courts, it is indispensable” that federal judges “should be bound down by strict rules and precedents, which serve to define and point out their duty in every particular case that comes before them.” The Federalist No. 78, p. 529 (J. Cooke ed. 1961). In the words of THE CHIEF JUSTICE, *stare decisis*’ “greatest purpose is to serve a constitutional ideal—the rule of law.” *Citizens United v. Federal Election Comm’n*, 558 U. S. 310, 378 (2010) (concurring opinion).

This Court has repeatedly explained that *stare decisis* “promotes the evenhanded, predictable, and consistent development of legal principles, fosters reliance on judicial decisions, and contributes to the actual and perceived integrity of the judicial process.” *Payne v. Tennessee*, 501 U. S. 808, 827 (1991). The doctrine “permits society to presume that bedrock principles are founded in the law rather than in the proclivities of individuals, and thereby contributes to the integrity of our constitutional system of government, both in appearance and in fact.” *Vasquez v. Hillery*, 474 U. S. 254, 265–266 (1986).

The doctrine of *stare decisis* does not mean, of course, that the Court should never overrule erroneous precedents. All Justices now on this Court agree that it is sometimes appropriate for the Court to overrule erroneous decisions. Indeed, in just the last few Terms, every current Member of

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this Court has voted to overrule multiple constitutional precedents. See, e.g., *Knick v. Township of Scott*, 588 U.S. 180 (2019); *Franchise Tax Bd. of Cal. v. Hyatt*, 587 U.S. 230 (2019); *Janus v. State, County, and Municipal Employees*, 585 U.S. 878 (2018); *Hurst v. Florida*, 577 U.S. 92 (2016); *Obergefell v. Hodges*, 576 U.S. 644 (2015); *Johnson v. United States*, 576 U.S. 591 (2015); *Alleyne v. United States*, 570 U.S. 99 (2013); see also Baude, Precedent and Discretion, 2020 S. Ct. Rev. 1, 4 (forthcoming) (“Nobody on the Court believes in absolute stare decisis”).

Historically, moreover, some of the Court’s most notable and consequential decisions have entailed overruling precedent. See, e.g., *Obergefell v. Hodges*, 576 U.S. 644 (2015); *Citizens United v. Federal Election Comm’n*, 558 U.S. 310 (2010); *Montejo v. Louisiana*, 556 U.S. 778 (2009); *Crawford v. Washington*, 541 U.S. 36 (2004); *Lawrence v. Texas*, 539 U.S. 558 (2003); *Ring v. Arizona*, 536 U.S. 584 (2002); *Agostini v. Felton*, 521 U.S. 203 (1997); *Seminole Tribe of Fla. v. Florida*, 517 U.S. 44 (1996); *Planned Parenthood of Southeastern Pa. v. Casey*, 505 U.S. 833 (1992);¹ *Payne v. Tennessee*, 501 U.S. 808 (1991); *Batson v. Kentucky*, 476 U.S. 79 (1986); *Garcia v. San Antonio Metropolitan Transit Authority*, 469 U.S. 528 (1985); *Illinois v. Gates*, 462 U.S. 213 (1983); *United States v. Scott*, 437 U.S. 82 (1978); *Craig v. Boren*, 429 U.S. 190 (1976); *Taylor v. Louisiana*, 419 U.S. 522 (1975); *Brandenburg v. Ohio*, 395 U.S. 444 (1969) (*per curiam*); *Katz v. United States*, 389 U.S. 347 (1967); *Miranda v. Arizona*, 384 U.S. 436 (1966); *Malloy v. Hogan*, 378 U.S. 1 (1964); *Wesberry v. Sanders*, 376 U.S. 1 (1964); *Gideon v. Wain-*

¹In *Casey*, the Court reaffirmed what it described as the “central holding” of *Roe v. Wade*, 410 U.S. 113 (1973), the Court expressly rejected *Roe*’s trimester framework, and the Court expressly overruled two other important abortion precedents, *Akron v. Akron Center for Reproductive Health, Inc.*, 462 U.S. 416 (1983), and *Thornburgh v. American College of Obstetricians and Gynecologists*, 476 U.S. 747 (1986). See *Casey*, 505 U.S., at 861; *id.*, at 870, 873 (plurality opinion).

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wright, 372 U. S. 335 (1963); *Baker v. Carr*, 369 U. S. 186 (1962); *Mapp v. Ohio*, 367 U. S. 643 (1961); *Brown v. Board of Education*, 347 U. S. 483 (1954); *Smith v. Allwright*, 321 U. S. 649 (1944); *West Virginia Bd. of Ed. v. Barnette*, 319 U. S. 624 (1943); *United States v. Darby*, 312 U. S. 100 (1941); *Erie R. Co. v. Tompkins*, 304 U. S. 64 (1938); *West Coast Hotel Co. v. Parrish*, 300 U. S. 379 (1937).

The lengthy and extraordinary list of landmark cases that overruled precedent includes the single most important and greatest decision in this Court's history, *Brown v. Board of Education*, which repudiated the separate but equal doctrine of *Plessy v. Ferguson*, 163 U. S. 537 (1896).

As those many examples demonstrate, the doctrine of *stare decisis* does not dictate, and no one seriously maintains, that the Court should *never* overrule erroneous precedent. As the Court has often stated and repeats today, *stare decisis* is not an "inexorable command." *E. g., ante*, at 105.

On the other hand, as Justice Jackson explained, just "because one should avoid Scylla is no reason for crashing into Charybdis." Jackson, *Decisional Law and Stare Decisis*, 30 A. B. A. J. 334 (1944). So no one advocates that the Court should *always* overrule erroneous precedent.

Rather, applying the doctrine of *stare decisis*, this Court ordinarily adheres to precedent, but *sometimes* overrules precedent. The difficult question, then, is when to overrule an erroneous precedent.

To begin with, the Court's precedents on precedent distinguish statutory cases and constitutional cases.

In statutory cases, *stare decisis* is comparatively strict, as history shows and the Court has often stated. That is because Congress and the President can alter a statutory precedent by enacting new legislation. To be sure, enacting new legislation requires finding room in a crowded legislative docket and securing the agreement of the House, the Senate (in effect, 60 Senators), and the President. Both by design and as a matter of fact, enacting new legislation is difficult—

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and far more difficult than the Court's cases sometimes seem to assume. Nonetheless, the Court has ordinarily left the updating or correction of erroneous statutory precedents to the legislative process. See, e.g., *Kimble v. Marvel Entertainment, LLC*, 576 U.S. 446, 456–457 (2015); *Patterson v. McLean Credit Union*, 491 U.S. 164, 172–173 (1989); *Flood v. Kuhn*, 407 U.S. 258, 283–284 (1972). The principle that “it is more important that the applicable rule of law be settled than that it be settled right” is “commonly true even where the error is a matter of serious concern, *provided correction can be had by legislation*.” *Burnet v. Coronado Oil & Gas Co.*, 285 U.S. 393, 406 (1932) (Brandeis, J., dissenting) (emphasis added).²

In constitutional cases, by contrast, the Court has repeatedly said—and says again today—that the doctrine of *stare decisis* is not as “inflexible.” *Burnet*, 285 U.S., at 406 (Brandeis, J., dissenting); see also *ante*, at 105–106; *Payne*, 501 U.S., at 828; *Scott*, 437 U.S., at 101. The reason is straightforward: As Justice O'Connor once wrote for the Court, *stare decisis* is not as strict “when we interpret the Constitution because our interpretation can be altered only by constitutional amendment or by overruling our prior decisions.” *Agostini*, 521 U.S., at 235. The Court therefore “must balance the importance of having constitutional questions *decided* against the importance of having them *decided right*.” *Citizens United*, 558 U.S., at 378 (ROBERTS, C. J., concurring). It follows “that in the unusual circumstance when fidelity to any particular precedent does more to damage this constitutional ideal than to advance it, we must be more willing to depart from that precedent.” *Ibid.* In his canonical

²The Court's precedents applying common-law statutes and pronouncing the Court's own interpretive methods and principles typically do not fall within that category of stringent statutory *stare decisis*. See *Leegin Creative Leather Products, Inc. v. PSKS, Inc.*, 551 U.S. 877, 899–907 (2007); *Kisor v. Wilkie*, 588 U.S. 558, 623–626 (2019) (GORSUCH, J., concurring in judgment).

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opinion in *Burnet*, Justice Brandeis described the Court's practice with respect to *stare decisis* in constitutional cases in a way that was accurate then and remains accurate now: In "cases involving the Federal Constitution, where correction through legislative action is practically impossible, this Court has often overruled its earlier decisions." 285 U. S., at 406–407 (dissenting opinion).

That said, in constitutional as in statutory cases, to "overrule an important precedent is serious business." Jackson, 30 A. B. A. J., at 334. In constitutional as in statutory cases, adherence to precedent is the norm. To overrule a constitutional decision, the Court's precedents on precedent still require a "special justification," *Allen v. Cooper*, 589 U. S. 248, 259–260 (2020) (internal quotation marks omitted); *Arizona v. Rumsey*, 467 U. S. 203, 212 (1984), or otherwise stated, "strong grounds," *Janus*, 585 U. S., at 917.

In particular, to overrule a constitutional precedent, the Court requires something "over and above the belief that the precedent was wrongly decided." *Allen*, 589 U. S., at 259–260 (internal quotation marks omitted). As Justice Scalia put it, the doctrine of *stare decisis* always requires "reasons that go beyond mere demonstration that the overruled opinion was wrong," for "otherwise the doctrine would be no doctrine at all." *Hubbard v. United States*, 514 U. S. 695, 716 (1995) (opinion concurring in part and concurring in judgment). To overrule, the Court demands a special justification or strong grounds.

But the "special justification" or "strong grounds" formulation elides a key question: What constitutes a special justification or strong grounds?³ In other words, in deciding

³The Court first used the term "special justification" in the *stare decisis* context in 1984, without explaining what the term might entail. See *Arizona v. Rumsey*, 467 U. S. 203, 212. In employing that term, the Court did not suggest that it was imposing a new *stare decisis* requirement as opposed to merely describing the Court's historical practice with respect to *stare decisis*.

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whether to overrule an erroneous constitutional decision, how does the Court know when to overrule and when to stand pat?

As the Court has exercised the “judicial Power” over time, the Court has identified various *stare decisis* factors. In articulating and applying those factors, the Court has, to borrow James Madison’s words, sought to liquidate and ascertain the meaning of the Article III “judicial Power” with respect to precedent. The Federalist No. 37, at 236.

The *stare decisis* factors identified by the Court in its past cases include:

- the quality of the precedent’s reasoning;
- the precedent’s consistency and coherence with previous or subsequent decisions;
- changed law since the prior decision;
- changed facts since the prior decision;
- the workability of the precedent;
- the reliance interests of those who have relied on the precedent; and
- the age of the precedent.

But the Court has articulated and applied those various individual factors without establishing any consistent methodology or roadmap for how to analyze all of the factors taken together. And in my view, that muddle poses a problem for the rule of law and for this Court, as the Court attempts to apply *stare decisis* principles in a neutral and consistent manner.

As I read the Court’s cases on precedent, those varied and somewhat elastic *stare decisis* factors fold into three broad considerations that, in my view, can help guide the inquiry and help determine what constitutes a “special justification” or “strong grounds” to overrule a prior constitutional decision.

First, is the prior decision not just wrong, but grievously or egregiously wrong? A garden-variety error or disagree-

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ment does not suffice to overrule. In the view of the Court that is considering whether to overrule, the precedent must be egregiously wrong as a matter of law in order for the Court to overrule it. In conducting that inquiry, the Court may examine the quality of the precedent's reasoning, consistency and coherence with other decisions, changed law, changed facts, and workability, among other factors. A case may be egregiously wrong when decided, see, *e. g.*, *Korematsu v. United States*, 323 U. S. 214 (1944); *Plessy v. Ferguson*, 163 U. S. 537 (1896), or may be unmasked as egregiously wrong based on later legal or factual understandings or developments, see, *e. g.*, *Nevada v. Hall*, 440 U. S. 410 (1979), or both, *ibid.*

Second, has the prior decision caused significant negative jurisprudential or real-world consequences? In conducting that inquiry, the Court may consider jurisprudential consequences (some of which are also relevant to the first inquiry), such as workability, as well as consistency and coherence with other decisions, among other factors. Importantly, the Court may also scrutinize the precedent's real-world effects on the citizenry, not just its effects on the law and the legal system. See, *e. g.*, *Brown v. Board of Education*, 347 U. S., at 494–495; *Barnette*, 319 U. S., at 630–642; see also *Payne*, 501 U. S., at 825–827.

Third, would overruling the prior decision unduly upset reliance interests? This consideration focuses on the legitimate expectations of those who have reasonably relied on the precedent. In conducting that inquiry, the Court may examine a variety of reliance interests and the age of the precedent, among other factors.

In short, the first consideration requires inquiry into how wrong the precedent is as a matter of law. The second and third considerations together demand, in Justice Jackson's words, a "sober appraisal of the disadvantages of the innovation as well as those of the questioned case, a weighing of

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practical effects of one against the other.” Jackson, 30 A. B. A. J., at 334.

Those three considerations together provide a structured methodology and roadmap for determining whether to overrule an erroneous constitutional precedent. The three considerations correspond to the Court’s historical practice and encompass the various individual factors that the Court has applied over the years as part of the *stare decisis* calculus. And they are consistent with the Founding understanding and, for example, Blackstone’s shorthand description that overruling is warranted when (and only when) a precedent is “manifestly absurd or unjust.” 1 Blackstone, Commentaries on the Laws of England, at 70.

Taken together, those three considerations set a high (but not insurmountable) bar for overruling a precedent, and they therefore limit the number of overrulings and maintain stability in the law.⁴ Those three considerations also constrain judicial discretion in deciding when to overrule an erroneous precedent. To be sure, applying those considerations is not a purely mechanical exercise, and I do not claim otherwise. I suggest only that those three considerations may better structure how to consider the many traditional *stare decisis* factors.

It is inevitable that judges of good faith applying the *stare decisis* considerations will sometimes disagree about when to overrule an erroneous constitutional precedent, as the Court does in this case. To begin with, judges may disagree about whether a prior decision is wrong in the first place—and importantly, that disagreement is sometimes the *real* dispute when judges joust over *stare decisis*. But even when judges agree that a prior decision is wrong, they may

⁴ Another important factor that limits the number of overrulings is that the Court typically does not overrule a precedent unless a party requests overruling, or at least unless the Court receives briefing and argument on the *stare decisis* question.

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disagree about whether the decision is so egregiously wrong as to justify an overruling. Judges may likewise disagree about the severity of the jurisprudential or real-world consequences caused by the erroneous decision and, therefore, whether the decision is worth overruling. In that regard, some judges may think that the negative consequences can be addressed by narrowing the precedent (or just living with it) rather than outright overruling it. Judges may also disagree about how to measure the relevant reliance interests that might be affected by an overruling. And on top of all of that, judges may also disagree about how to weigh and balance all of those competing considerations in a given case.⁵

This case illustrates that point. No Member of the Court contends that the result in *Apodaca* is correct. But the Members of the Court vehemently disagree about whether to overrule *Apodaca*.

II

Applying the three broad *stare decisis* considerations to this case, I agree with the Court's decision to overrule *Apodaca*.

First, *Apodaca* is egregiously wrong. The original meaning and this Court's precedents establish that the Sixth Amendment requires a unanimous jury. *Ante*, at 92; see, e.g., *Patton v. United States*, 281 U.S. 276, 288 (1930); *Thompson v. Utah*, 170 U.S. 343, 351 (1898). And the original meaning and this Court's precedents establish that the

⁵To be clear, the *stare decisis* issue in this case is one of horizontal *stare decisis*—that is, the respect that this Court owes to its own precedents and the circumstances under which this Court may appropriately overrule a precedent. By contrast, vertical *stare decisis* is absolute, as it must be in a hierarchical system with “one supreme Court.” U.S. Const., Art. III, §1. In other words, the state courts and the other federal courts have a constitutional obligation to follow a precedent of this Court unless and until it is overruled by this Court. See *Rodriguez de Quijas v. Shearson/American Express, Inc.*, 490 U.S. 477, 484 (1989).